

Court No. - 32

Case :- WRIT - C No. - 17894 of 2022

Petitioner :- Irshad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dhirendra Kumar Srivastava, Ajay Singh Yadav

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Mrs. Sunita Agarwal, J.

Hon'ble Vikram D. Chauhan, J.

No one appears for the petitioner to press the present writ petition. Sri Rajesh Yadav learned counsel for the respondent nos. 2 and 3 is present.

Put up this matter on 5th August, 2022 as fresh.

Order Date :- 29.6.2022

Brijesh

Court No. - 3

Case :- WRIT - C No. - 17894 of 2022

Petitioner :- Irshad

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Dharendra Kumar Srivastava, Ajay Singh Yadav

Counsel for Respondent :- C.S.C., Rajesh Yadav

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

1. Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondent, and Shri Pranjal Mehrotra, learned counsel for the respondent no.2 and 3.

2. This writ petition has been filed praying for the following relief :

"i) Issue a writ, order or direction in nature of certiorari quashing the demand notice no.514 dated 13.7.2021, issued by Executive Engineer, Vidyut Vitran Khand 3rd Moradabad amount of Rs.232757.00."

3. Learned counsel for the respondent nos.2 and 3/Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

4. In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.8 of U.P. Electricity Supply Code, 2005 before the respondent no.2 within four weeks from today alongwith a certified copy of this order. In the event, such an objection is submitted within the stipulated period, it shall be decided by the respondent no.2 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

5. For a period of eight weeks or till the disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand/notice.

Order Date :- 5.8.2022

SK